

Athens, 16-09-2024

Protocol No.: 2513

Decision 30/2024

(Single-Member Body)

The President of the Authority, as a single-member body according to Article 17 paragraph 1 of Law 4624/2019 (Government Gazette A' 137), within the framework of the powers provided in Articles 4 paragraph 3 and 10 paragraph 4 of the Operating Regulation of the Authority (Government Gazette B' 879/25.02.2022), convened via teleconference on May 9, 2024, in order to examine the case referred to below in the background of this decision. Present without voting rights was Kyriaki Karakasi, legal auditor – lawyer, as well as Irini Papageorgopoulou, employee of the administrative affairs department, as secretary.

The Authority took into account the following:

A complaint was submitted to the Data Protection Authority under protocol number G/EIS/12769/22-12-2022 by A, alleging the failure of the accused lawyer to respond to a request for the return of documents held by him in the context of a mandate for cases he handled as the attorney-in-fact of the complainant. Specifically, the complainant claims that he first sent an SMS to the accused lawyer on November 27, 2019, requesting the return of his file, while in an email dated April 27, 2020, he also requested the provision of all files that the accused lawyer had handled as his legal representative and that concern him. The latter request was reiterated with the extrajudicial statements – protests – demands served to the aforementioned accused on September 30, 2020, and June 22, 2021, without, according to his claims, having been satisfied until the submission of the complaint, although, as he states, he has no financial obligation after the revocation of his mandate to the accused lawyer as his attorney-in-fact.

The Authority, in the context of examining the above complaint, with its letter number G/EKS/666/14-03-2023, requested from the accused lawyer written clarifications regarding the allegations as well as any relevant documentation. Specifically, the accused lawyer was asked whether and how he responded to the above requests of the complainant and particularly whether and how he responded to the mentioned extrajudicial demands or for what reason he may not have provided the requested documents. The Authority requested the accused to attach the relevant requests and any response he may have provided, as well as to clarify whether there is any specific reason justifying the non-fulfillment of the above requests.

Subsequently, the accused lawyer sent his response under protocol number G/EIS/2671/11-04-2023 to the Authority, according to which the complaint filed by the complainant against him has been archived with the order number ... of the Prosecutor of First Instance Court X. According to the accused, the aforementioned complaint had the same content as that of the complaint under examination, while it was accompanied by the same relevant documents as those submitted to the Authority. Since none of the specific questions posed by the Authority in its initial letter number G/EKS/666/14-03-2023 were answered, a further letter was sent to the accused under protocol number G/EKS/1828/19-07-2023, in which he was once again called to promptly provide the requested clarifications, while the Authority reminded the accused of the obligation arising from the GDPR for every data controller to cooperate with the supervisory authority (see Article 31 GDPR), otherwise the imposition of an administrative fine is threatened (see Article 83 paragraph 4 a' GDPR). This reminder letter was sent to the same email address from which the accused lawyer responded to the Authority's first letter, without the Authority receiving any proof of unsuccessful delivery of the relevant email, while the same letter was also sent to the accused lawyer by registered mail to the address of his professional establishment without ever...

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will be returned to the Authority as not delivered to the respondent – recipient of it. However, due to the respondent's lack of response, the Authority sent the document with reference number

Γ/ΕΞΕ/3117/05-12-2023 to the complainant, in order to clarify the factual circumstances, so that a substantive investigation of the complaint could be feasible, forwarding to the latter the respondent's response and requesting clarifications on whether there is a dispute with the respondent as well as what the status is of the complaint that the latter appears to have submitted against the respondent to the Public Prosecutor's Office of Misdemeanors X. Additionally, the Authority called upon the complainant to provide any relevant documentation, particularly the aforementioned complaint and the outcome thereof. In the response of the complainant to the Authority, with reference number Γ/ΕΙΣ/9163/27-12-2023, the latter states, among other things, the following: Firstly, he reiterates his claim that the respondent does not provide him with documents that include his personal data, while noting that he has not filed a complaint against the respondent lawyer for the violation of his personal data but for the misappropriation of documents. He confirms that the aforementioned complaint was dismissed, but for legal reasons, while it is confirmed in the context of this dismissal that the lawyer's possession of the complainant's documents was without right, as noted by the latter. Specifically, he states that the prosecutorial order presented before the Authority concludes that the objective elements of the crime of misappropriation of documents are not established, based, among other things, on the complainant's access to the disputed documents from another source and the lack of any procedural or general harm to the complainant from the non-return of the documents, without excluding any potential civil or disciplinary liability of the lawyer. Furthermore, the complainant notes that the respondent lawyer never denied his possession of documents containing the complainant's personal data. Finally, the complainant states that with the explicit, as mentioned above, revocation of his consent for the lawyer to hold documents with his personal data, the latter was obliged to delete them, while the lack of cooperation of the respondent with the Authority is also criticized.

Following this, the Authority summoned the parties to a hearing before the President of the Authority as a single-member body via videoconference on 29-02-2024, with the summons to the respondent lawyer numbered Γ/ΕΞΕ/613/20-02-2024 and the summons to the complainant numbered Γ/ΕΞΕ/614/20-02-2024. During the above session, the discussion was postponed due to the respondent's inability to attend, for the session on 4th-04-2024, for which the summons numbered Γ/ΕΞΕ/679/29-02-2024 was sent to the respondent and the summons numbered Γ/ΕΞΕ/680/29-02-2024 was sent to the complainant. On this last date, the discussion was postponed ex officio. Following this, the Authority again summoned the parties to a hearing via videoconference, namely with the summons numbered Γ/ΕΞΕ/1172/17-04-2024 to the respondent lawyer and with the summons numbered Γ/ΕΞΕ/1173/17-04-2024 to the complainant, for the session on 24th-04-2024, during which the discussion was postponed ex officio. Finally, the Authority again summoned the parties to a hearing via videoconference, namely with the summons numbered Γ/ΕΞΕ/1235/24-04-2024 to the respondent lawyer and with the summons numbered Γ/ΕΞΕ/1236/24-04-2024 to the complainant, for the session on 09th-05-2024, during which the complainant attended and presented his views along with his lawyer, Ilia Angelopoulos (Bar Association No. ...), while the respondent lawyer [of area] X with (Bar Association No. ...) attended in person and presented his views. During this session, both parties were granted a deadline to submit briefs to further support their claims by 22-05-2024.

Subsequently, the complainant timely submitted his brief numbered Γ/ΕΙΣ/4462/21-05-2024, in which he summarizes the history of the case up to the discussion before the Authority, largely reiterating the same claims, while countering the respondent's claim regarding the delayed exercise of the right of access, as he states that this right was exercised the very next day after the termination of his cooperation with the respondent lawyer. The complainant further states that by repeatedly requesting the return of the documents concerning him, as mentioned above, he revoked the consent he had given to the respondent lawyer and therefore the latter had an obligation to delete the relevant data. Furthermore, he emphasizes that the respondent lawyer never denied that he holds the relevant documents containing his personal data, while he notes that the claim that the latter holds copies and not the originals of the requested documents is irrelevant, as the core of the protection of personal data is not related to the type of documents but to the personal data themselves of each data subject. Finally, the complainant...

It is also mentioned regarding the non-cooperation of the accused with the Authority.

The aforementioned accused lawyer also submitted, in a timely manner, the document with reference number Γ/ΕΙΣ/4501/22-05-2024, in which he invokes abusive exercise of the right of access on the part of the complainant, as the latter invoked the infringement before the Authority in December 2022 while the alleged, as he states, violation of the relevant right occurred in November 2019. The accused invokes Article 12 paragraph 5 subparagraph b of the GDPR, based on which he refused to proceed with the complainant's request, as it was evidently unfounded, excessive, and abusively repetitive. Furthermore, the accused states that after the complainant's relocation in 2015 and certainly from the beginning of 2017, the latter sent him via emails the necessary documents for the cases he handled as the complainant's attorney-in-fact, while regarding older cases he had handled, which have long been closed or completed procedurally, he does not keep in physical form any of the copies that had been provided to him by the complainant. He further notes that the in absentia criminal decisions had been served to the complainant, and the certified copy of a relevant decision of the Three-Member Misdemeanor Court of X had been submitted to the Supreme Court for the exercise of a request for annulment. The accused also states that for a series of cases of the complainant that he handled, the documents he possessed concerning the latter were either sent to him by the complainant himself or retrieved from the online platform "DIAVGEIA" as public documents. As for the documents concerning two of the complainant's cases, it is emphasized that they were already in the hands of the complainant, as he had the right to receive copies of them from the criminal file as a party. Additionally, the accused claims that the complainant did not exercise the rights of erasure and objection, which were the only appropriate means to satisfy the intended purpose, and that the selective communication to the Authority of brief written messages (sms) from the complainant falls within the realm of violation of the confidentiality of communications. Finally, the accused expresses his doubt as to whether there practically exists, in light of the above, a field for satisfying the contested right of access, since the data subject is aware of the material that he had sent electronically at an earlier time.

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The Authority, having taken into account the above,

CONSIDERED IN ACCORDANCE WITH THE LAW

1. Since from the provisions of Articles 51 and 55 of the General Data Protection Regulation (Regulation (EU) 2016/679 – hereinafter, GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137) it follows that the Authority has the competence to supervise the application of the provisions of the GDPR, this law, and other regulations concerning the protection of individuals from the processing of personal data. Article 5 paragraph 1 of the GDPR sets out the principles that must govern a processing operation, and paragraph 2 of this article stipulates that the data controller "is responsible and is able to demonstrate compliance with paragraph 1 ('accountability')." As the Authority has ruled,¹ with the GDPR a new compliance model has been adopted, the central point of which is the principle of accountability, under which the data controller is obliged to design, implement, and generally take the necessary measures and policies to ensure that the processing of data is in accordance with the relevant legislative provisions. Furthermore, the data controller is burdened with the further duty to demonstrate his compliance with the principles of Article 5 paragraph 1 of the GDPR.

2. Since according to Article 15 paragraphs 1, 3, and 4 of the GDPR "1. The data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning him or her is being processed and, if so, the right of access to the personal data and to the following information:

a) the purposes of the processing, b) the relevant categories of personal data, c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular the recipients in third countries or international organizations, d) where possible, the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period, e) the existence of the right to request from the data controller for

1 1 See Authority Decision 26/2019, consideration 8, available on its website.

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Correction or deletion of personal data or restriction of processing of personal data concerning the

data subject or the right to object to such processing, (d) the right to lodge a complaint with a supervisory authority, (e) when personal data are not collected from the data subject, any available information regarding their source, (f) the existence of automated decision-making, including profiling, as provided for in Article 22 paragraphs 1 and 4, and at least in such cases, significant information regarding the logic involved, as well as the significance and the anticipated consequences of such processing for the data subject. 2. [...] 3. The data controller provides a copy of the personal data being processed. [...] If the data subject submits the request by electronic means and unless the data subject requests otherwise, the information is provided in a commonly used electronic format. 4. The right to receive a copy referred to in paragraph 3 does not adversely affect the rights and freedoms of others. With these provisions, the right of access of the data subject to their personal data is established. In the context of this right, the data subject must, on the one hand, have access to personal data that has been collected and concerns them, in order to be informed and to verify the accuracy and nature of the processing of their data and to validate the legality of the processing, and on the other hand, be able to exercise this right easily and at reasonable intervals. The data controller must provide remote access to a secure system through which the data subject obtains direct access to the data concerning them. Furthermore, the Authority consistently accepts that the data subject has the right to know whether personal data concerning them are being processed, as well as to gain access to such data, without the need to invoke a legitimate interest, since this is inherent and forms the basis of the right of access,

2 See Recital 63 of the GDPR

3 See also Recital 63 of the GDPR and Decision of the Authority 23/2020.

4 See in particular, Decisions of the Authority 22/2023, 32/2019, 144/2017, 195/2014, 193/2014, and 75/2011, available on the Authority's website.

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that is, the right of the data subject to be informed of information concerning them that has been recorded in a file maintained by the data controller, so that the fundamental principle of law for the protection of personal data, which consists of the transparency of processing as a prerequisite for any further control by the data subject of its legality, is realized. Similarly, there is no requirement to invoke the reasons for which the data subject wishes to exercise the right of access. Furthermore, the obligation to satisfy the right of access is universal, meaning it concerns all information relating to the data subject and, additionally, does not depend on the invocation of reasons for exercising the right. Consequently, the satisfaction of the right does not depend on a prior judgment by the data controller as to whether the exercise of the right is justified or not.

3. Since according to Article 12 of the GDPR "1. The data controller takes appropriate measures to provide the data subject [...] any notification in the context of Articles 15 [...] 2. The data controller facilitates the exercise of the rights of data subjects provided for in Articles 15 [...] 3. The data controller provides the data subject with information on the action taken in response to a request under Articles 15 to 22 without undue delay and in any case within one month of receiving the request. This deadline may be extended by two additional months, if necessary, taking into account the complexity of the request and the number of requests. The data controller informs the data subject of the said extension within one month of receiving the request, as well as the reasons for the delay. [...] 4. If the data controller does not act on the request of the data subject, the data controller informs the data subject of the

5 See, for example, Decisions of the Authority 22/2023, 2/2020, 23/2020, 16/2017, 98/2014, 149/2014, 72/2013, and 71/2013.

6 See EDPB, Guidelines 01/2022 on data subjects' rights – Right of access, Version 2.0, adopted on 28 March 2023, Chapter 61, paragraph 167, page 52, https://edpb.europa.eu/system/files/2023-04/edpb_guidelines_202201_data_subject_rights_access_v2_en.pdf.

7 See Decision of the Authority 16/2017.

8 See also Decision of the Authority 1/2005, which ruled that the data controller must respond to the data subject's access request without ambiguity and evasions, invoking reasons unrelated to the

satisfaction of the right of access. See also Decision of the Authority 16/2017.

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of data, without delay and no later than one month from the receipt of the request, regarding the reasons for which no action was taken and the possibility of submitting a complaint to a supervisory authority and exercising judicial appeal. 5. The information provided in accordance with Articles 13 and 14 and any announcement as well as all actions taken in accordance with Articles 15 to 22 and Article 34 are provided free of charge. If the requests of the data subject are manifestly unfounded or excessive, particularly due to their repetitive nature, the data controller may either: a) impose a reasonable fee, taking into account the administrative costs of providing the information or the announcement or executing the requested action, or b) refuse to act on the request. The data controller bears the burden of proof for the manifestly unfounded or excessive nature of the request.

4. Whereas according to Article 5 of the Code of Lawyers (Law 4194/2013) it is provided that: "The lawyer, in the exercise of his duties: a) Defends the Constitution, the European Convention on Human Rights and its Additional Protocols, the Charter of Fundamental Rights of the European Union, as well as all international and European conventions on human rights. b) Follows the traditions of the defense profession and the rules of ethics, as historically shaped during the practice of law and articulated in the Code. c) Maintains confidentiality, inviolable in favor of his client, regarding what the client has entrusted to him or has come to his knowledge during the exercise of the legal profession. d) Is bound by the content of the mandate he has accepted, unless a specific act, action, or omission within the framework of the mandate contradicts his duty. e) Maintains the freedom to handle the case, is not subject to instructions and orders contrary to the law and incompatible with the interests of his client."

5. Whereas according to the provision of Article 31 of the GDPR it is provided that "The data controller and the processor and, where applicable, their representatives cooperate, upon request, with the supervisory authority in the performance of its tasks." This provision introduces an independent general obligation for every data controller to cooperate with the supervisory authority when a relevant request is submitted in the exercise of the duties assigned to it by the European legislator, while the violation of its fulfillment incurs independently the imposition of the administrative fine of Article 83 paragraph 4 point a of the GDPR. It is noted that this obligation, together with the principle of accountability of Article 5 paragraph 2 of the GDPR, strengthens the role of the supervisory authority in the exercise of its powers towards the realization of the purpose of effective implementation of personal data protection rules.

6. Whereas in the case under examination, from the elements of the file it appears that the complainant exercised the right of access to data concerning him before the complained lawyer as the data controller duly and clearly on 27-11-2019 with a relevant SMS, in which he requested the return of his file, while in the email dated 27-04-2020 that he also sent to the complained party, he requested the provision of all the files he has handled, as his legal representative, and that concern him. The latter request was reiterated in the extrajudicial statements – protests – notices served to the aforementioned complained party on 30-09-2020 and 22-06-2021. Given that the content of the above requests submitted to the Authority does not leave any doubt or ambiguity regarding the requested documents, the claim of the complained party regarding the attribution to the relevant requests of content such that it would not be practically possible to respond appropriately to them is to be rejected as unfounded. In any case, it is noted that the right of access does not necessarily require a specific form or to be exercised in a ceremonial manner.

7. Whereas, furthermore, from the examination of all the elements of the file, it does not appear that the complained lawyer responded in any way to the above access requests made and reiterated before him by the complainant, as detailed above, although there is no indication of any financial pending matter after the withdrawal of the latter's mandate to the complained party. However, the complained lawyer was obliged, in accordance with the provision of paragraph 4 of Article 12 of the GDPR, to inform the latter, without delay and no later than one month from the receipt of the request, of the reasons for which he did not act.

9 See Decisions of the Authority 37/2022, para. 4 and 28/2022, para. 8.

10 See pages 2-3 of the post-hearing submitted memorandum of the complained party.

11 See Decision of the Authority 26/2021 para. 11 as well as 36/2021, para. 7, available on the website www.dpa.gr.

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who does not act as well as for the possibility of filing a complaint with the competent supervisory authority and exercising judicial recourse. In particular, the lawyer being complained about claims before the Authority that the complainant's request is excessive, unfounded, and abusive; however, in any case, he was obliged, as mentioned above, to respond and indeed in a timely manner to the subject of the data, justifying his non-response to the access request made before him by referring to the character of the request, which he deems to be as stated above, for which he bears the burden of proof according to paragraph 5 of the aforementioned Article 12 of the GDPR, regardless of the fact that the complainant reiterated his request, including through extrajudicial invitations, due to the failure of the complained party to send any response, even a negative one. Furthermore, the claim of the complained party that he does not keep documents from previous cases of the complainant that he handled as his attorney does not influence the case at hand because the data controller, even when not maintaining a record of the data subject, is not exempted from this obligation to inform the data subject by responding, even negatively. Moreover, the complained party states that the data subject had already accessed some of the information he requested or could obtain it from other sources, including case files for cases in which he was a party. However, the above claims of the complained party do not negate the obligation he had to respond to the complainant, as previously mentioned, while the fact that the data subject may have access from another source, such as a case file, to the data he requested from a specific data controller that concerns him, likewise does not affect the obligation of the data controller to satisfy the relevant right of access exercised before him. This is because any other potential source or record does not correspond to the records maintained by the complained lawyer.

12 See, for example, page 4 of the post-hearing memorandum submitted by the complained party.

13 See Council of State 2627/2017, para. 7 and decisions of the Authority 61/2021, 2/2020, para. 1 and 43/2019.

14 Compare with the Authority's Decision 26/2021, para. 14, and also compare with the Authority's Decision 28/2022, para. 6 regarding the fact that providing information to the competent judicial authorities does not justify the non-compliance of the data controller with its independent obligations arising from the regulatory framework.

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8. Because, according to what has been stated above, the complained lawyer was obliged to respond and indeed in a timely manner by sending the requested information of the complainant that he possessed or at least informing him of the fact that he does not maintain in his records any data concerning him or informing the data subject of the reasons for which he did not act, as mentioned above, as well as for the possibility of filing a complaint with a supervisory authority and exercising judicial recourse. However, from the factual circumstances and the evidence presented to the Authority, it was not proven that within the deadlines provided by the GDPR, the right of access was satisfied or that the complainant was informed of the reasons for the justified non-satisfaction thereof, nor was there a delayed fulfillment of the relevant obligation. Therefore, a violation of Article 15 of the GDPR is established in conjunction with the provisions of Article 12 paragraphs 3 and 4 of the GDPR.

9. Furthermore, from the above factual circumstances, it appears that the data controller did not demonstrate any willingness to cooperate with the Authority by providing clarifications regarding the complaint that concerned him. Specifically, he ignored and did not take care to respond clearly to the specific questions posed by the Authority for the first time in its letter with reference number G/EXE/666/14-03-2023. Specifically, he sent a note in which none of the Authority's questions were answered, and consequently, obstacles arose in the further investigation of the substantive validity of the contested complaint. Furthermore, the complained party did not send any response to the Authority's letter with reference number G/EXE/1828/19-07-2023, in which he was invited to promptly provide the necessary clarifications, and which also reminded him of the obligation arising from Article

31 of the GDPR that he bears as the complained party. As mentioned above, the latter letter was sent to the email address from which the complained party responded to the Authority's first letter, without the Authority receiving any proof of unsuccessful delivery of the relevant email, while the same letter was also sent to the complained lawyer by registered mail to the address of his professional establishment without ever being returned to the Authority as undelivered.

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complainant – recipient of it. In light of the aforementioned refusal of cooperation by the complainant, the Authority, in an additional effort to crystallize the actual facts in order to enable an effective investigation of the validity of the submitted complaint, sent document no. Γ/ΕΞΕ/3117/05-12-2023 to the complainant this time, requesting clarifications and relevant documents for the investigation of what the complainant vaguely mentioned regarding their dispute. The claims of the complainant regarding the alleged application by the Authority of "the principle of non-reversal of the burden of proof" are to be rejected as unfounded due to the request for supplementary information from the complainant. Given these facts, the complainant violated the obligation arising from the aforementioned Article 31 of the GDPR, which is autonomous, and its violation incurs the imposition of an administrative fine under Article 83(4)(a) of the GDPR.

10. Since, according to what is mentioned in the previous considerations, there is a failure to satisfy the relevant access rights that were repeatedly exercised by the complainant, and consequently, a violation of Article 12(3) and (4) of the GDPR regarding the right of access has been established, as detailed above, since from 27.11.2019 and 27.04.2020, when the examined access rights were exercised, until the date of the hearing before the Authority, there has been no response from the side of the complainant's lawyer, in application of the above provisions.

11. Since, according to the GDPR (Recital 148), in order to strengthen the enforcement of the rules of this Regulation, sanctions, including administrative fines, must be imposed for each violation of the Regulation, in addition to or instead of the appropriate measures imposed by the supervisory authority in accordance with this Regulation.

15 See pages 3-4 of the post-hearing memorandum of the complainant where the following is stated: "It is worth noting that with the above document no. 3117/05-12-2023, the Authority utilized the content of our response no. Γ/ΕΙΣ/2671/11-04-2023 to the Authority and essentially applied in practice the principle of non-reversal of the burden of proof in cases of complaints, asking the complainant to provide supplementary information based on what was explicitly mentioned in our response."

16 It is noted that the Authority, with decision 33/2021, imposed an administrative fine for the autonomous violation of the provision of Article 31 of the GDPR.

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12. Since, based on the above, the Authority deems it appropriate to exercise its corrective powers under Article 58(2) of the GDPR in relation to the established violations and that, based on the circumstances identified, an effective, proportionate, and deterrent administrative monetary fine must be imposed under Article 83 of the GDPR, both for the restoration of compliance and for the punishment of the unlawful behavior. Furthermore, the Authority took into account the criteria for determining the fine set out in Article 83(2) of the GDPR, as well as paragraphs 5(b) and 4(a) of the same article for each of the aforementioned violations applicable in this case, the Guidelines for the application and determination of administrative fines for the purposes of Regulation 2016/679 issued on 03-10-2017 by the Article 29 Working Party (WP 253), and the Guidelines 04/2022 of the European Data Protection Board for calculating administrative fines under the General Regulation, as well as the factual data of the examined case and particularly the criteria listed below.

A. For the violation of the provisions of Article 15(1) of the GDPR in conjunction with the provisions of paragraphs 3 and 4 of Article 12 of the GDPR:

i.

The fact that the violation of the legality of processing falls under the provision of paragraph 5 of Article 83 GDPR

ii.

The fact that the complainant did not satisfy the right of access exercised by the complainant under Article 15(1) GDPR, nor did it take any action under paragraphs 3 and 4 of Article 12 of the GDPR from 2019 until the hearing before the Authority

iii.

The fact of the long duration of non-satisfaction of the right of access despite the intervention of the Authority.

iv.

The fact that it does not appear that any of the requested personal data of the complainant includes special categories of personal data

v.

The fact that the violation in this case affected only one (1) natural person as the subject of the personal data in relation to the satisfaction of the right of access.

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vi. The fact that the incident appears to be isolated, as no sanction has been imposed by the Authority on the reported lawyer for a similar violation in the past, while there is no evidence of intent on the part of the reported lawyer for the aforementioned violation.

vii. The fact that the reported lawyer did not take any action regarding the contested access rights exercised by the complainant, even after the intervention of the Authority.

viii. The fact that from the evidence presented to the Authority, based on which it established the violation of the GDPR, the data controller did not gain any financial benefit, nor did it cause material damage to the complainant.

ix. The fact that the violation of the provisions regarding the rights of data subjects falls, according to the provisions of Article 83 paragraph 5 point b of the GDPR, under the highest category provided for in the administrative fines grading system.

x. The gross revenues of the reported party, as derived from the E3 form of the AADE (financial statement from business activity) for the tax year 2022 submitted before the Authority.

B. For the violation of the obligation to cooperate with the Authority under Article 31 of the GDPR, which falls under the category of point a of paragraph 4 of Article 83 of the GDPR regarding the grading system of administrative fines:

i. The ongoing nature of the non-cooperation with the Authority by the reported lawyer, who, in the first of the two clarifying documents sent to him by the Authority, as described in detail above, did not provide sufficient answers, while in the second he did not send any response.

ii. The fact that the established violation is committed by a data controller who holds the status of a lawyer.

iii. The fact that this specific violation constitutes an isolated case.

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iv. The gross revenues of the reported party, as derived from the E3 form of the AADE (financial statement from business activity) for the tax year 2022 submitted before the Authority.

13. Because, based on the above, the Authority decides that administrative sanctions, as mentioned in the operative part, must be imposed on the reported lawyer as the data controller, which are deemed proportionate to the severity of the violations.

FOR THESE REASONS

The Authority

a) Finds that the reported lawyer violated the right of access under Article 15 of the GDPR in conjunction with Article 12 paragraphs 3 and 4 of the GDPR as detailed above, and therefore imposes an administrative fine of seven hundred (700€) euros, in accordance with Article 58 paragraph 2 point h of the GDPR.

b) Finds that the reported lawyer violated Article 31 of the GDPR, as detailed above, and therefore imposes an administrative fine of seven hundred (700€) euros, in accordance with Article 58 paragraph 2 point h of the GDPR.

The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou